

23STCV08886 23STCV08886

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-22

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Case Number: 23STCV08886 Hearing Date: September 22, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:20 PM on September 21, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 21, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs sued the architect and contractor hired by Plaintiffs to remodel their property.

Contractor filed a Cross-Complaint against the subcontractor for indemnity.

Defendant Lauren Shahid Architect, Inc. filed a Cross-Complainant against the property owners and the contractor.

Specially appearing Defendant Joseph Barr moves to quash service of the summons and complaint.

TENTATIVE RULING

Specially appearing Defendant Joseph Barr's motion to quash service of the summons and complaint is DENIED. Defendant is to respond to the First Amended Complaint within 30 days.

ANALYSIS

Motion To Quash Service of Summons and Complaint

Request
For Judicial Notice

Plaintiffs request that the Court take judicial notice of the following:

Exhibit A: The California Department of Consumer Affairs, Board for Professional Engineers, Land Surveyors, and Geologists' licensing record for Joseph Daniel Barr, Civil Engineer License No. 70708, printed September 3, 2026. The record is available online at the California Department of Consumer Affairs, Board for Professional Engineers, Land Surveyors, and Geologists public website which is accessible here: <https://search.dca.ca.gov/details/7500/C/70708/b9829da0cc6c533b9a48e75f3c2ae34b>

Exhibit B: The California Secretary of State's most recent Statement of Information filed January 21, 2026 pertaining to Defendant Bay City Geology (File No. BA20260166344) which demonstrates that Bay City Geology, Inc. is a California corporation and that Joseph D. Barr III is its sole director.

Both requests are GRANTED. Pursuant to Evid. Code § 452(c), the Court may take judicial notice of official records of an administrative agency. (Ordlock v. Franchise Tax Bd. (2006) 38 Cal.4th 897, 912.)

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Specially

appearing Defendant Joseph Barr moves to quash service of summons and complaint due to lack of personal jurisdiction.

On a motion

to quash for lack of personal jurisdiction, the plaintiff has the initial burden of proof:

“When a defendant moves to quash service of process” for lack of specific jurisdiction, “the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.” (Vons, supra, 14 Cal.4th at p. 449.) “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating ‘that the exercise of jurisdiction would be unreasonable.’ “ (Pavlovich, supra, 29 Cal.4th at p. 273, quoting Vons, at p. 449.)

(Snowney v. Harrah's Entertainment, Inc.
(2005) 35 Cal.4th 1054, 1062 [bold emphasis added].)

General Jurisdiction

Engaging in

a substantial, continuous or systematic course of business in forum states is insufficient to confer the exercise of general jurisdiction.

The defendant's presence in the forum state must render it the equivalent of the defendant's “home state.” The U.S. Supreme Court case of Daimler AG v. Bauman (2014) 571 U.S. 117 prohibits the exercise of general jurisdiction over Defendant because California is not the equivalent of its “home state,” i.e., its principal place of business. (Id. at 122, 127.)

Here,

Plaintiff does not argue that a basis for general jurisdiction exists as to moving Defendant.

As such,

there is no basis for a finding of general jurisdiction.

Specific Jurisdiction

“Specific jurisdiction

may be asserted where the defendant has purposefully availed himself of forum benefits and the controversy is related to or arises out of the defendant's contacts with the forum. (Citation omitted.) Sufficient minimum contacts for specific jurisdiction exist where a nonresident “ ‘deliberately’ has engaged in significant activities within a [s]tate [citation] or has created ‘continuing obligations’ between himself and residents of the forum. [Citation.]” (Citation omitted.)” (Hall v. Laronde (1997) 56 Cal.App.4th 1342, 1346.) Moreover, the exercise of specific jurisdiction must be fair and reasonable. (Anglo Irish Bank Corp., PLC v. Superior Court (2008) 165 Cal.App.4th 969, 980.)

“When determining whether specific jurisdiction exists, courts consider the “ ‘relationship among the defendant, the forum, and the litigation.” ‘ (Citations omitted.) A court may exercise specific jurisdiction over a nonresident defendant only if: (1) ‘the defendant has purposefully availed himself or herself of forum benefits’ (citation omitted); (2) ‘the “controversy is related to or ‘arises out of’ [the] defendant's contacts with the forum” ‘ (citation omitted); and (3) ‘ ‘the assertion of personal jurisdiction would comport with ‘fair play and substantial justice’ “ ‘ (Citations omitted.)

(Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1062.)

“In judging minimum contacts, a court properly focuses on ‘the relationship among the defendant, the forum, and the litigation.’ [Citations.]” (Citation omitted.) “Each defendant's contacts with the forum State must be assessed individually.” (Id. at p. 790.)

(HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.)

[S]pecific jurisdiction “requires a showing not only that the defendant has “‘purposefully directed’” its activities at the forum but also that ‘the litigation results from alleged injuries that “arise out of or relate to” those activities.’ [Citation.] There must be ‘a connection

between the forum and the specific claims at issue.' [Citation.] 'If the operative facts of the allegations of the complaint do not relate to the [nonresident's] contacts in this state, then the cause of action does not arise from that contact such that California courts may exercise specific jurisdiction.'" (Citation omitted.) "[T]he relatedness requirement is satisfied if 'there is a substantial nexus or connection between the defendant's forum activities and the plaintiff's claim.'" (Citations omitted.)

(SK Trading
Internat. Co., Ltd. v. Superior Court (2022) 77 Cal.App.5th 378, 389.)

Here, specially appearing Defendant Joseph Barr admits in his Declaration that: (1) he is employed as a consulting licensed Professional Geologist and licensed Professional Engineer at Bay City Geology, Inc. (Barr Decl., ¶ 1); (2) In February/March 2019, Bay City entered into a written agreement with Jacob Emtestam to perform a geological and soils engineering investigation of the subsurface earth materials at 3338 Bonnie Hill Drive, Los Angeles, California. (Barr Decl., ¶ 7); (3) Bay City's construction-phase role was limited to verifying that the retaining wall foundation/friction piles were excavated into bedrock consistent with the depths indicated on the structural engineering plans and Bay City's geologic/soils report, and to verifying that retaining wall backfill compaction exceeded 90% of the laboratory-determined maximum density. (Barr Decl., ¶ 8.); (4) Barr's work was limited to Bay City's geotechnical scope, performed from North Carolina. (Barr Decl., ¶ 8.)

By Barr's own admission, he deliberately engaged in performing geotechnical work related to a parcel of real property located in California. The fact that Barr performed such work as an employee of Bay City pursuant to a contract Bay City entered into does not shield Barr from the exercise of personal jurisdiction over him:

In *Calder v. Jones*, *supra*, 465 U.S. 783, the United States Supreme Court affirmed the exercise of jurisdiction by a California court over the president/editor of the nonresident National Enquirer Corporation and the reporter/author of one of its articles, in a libel action. (*Id.*, at pp. 785-786 [79 L.Ed.2d at pp. 809-810].) The *Calder* defendants contended they had no responsibility for circulation of the article in California, and that as an author and an editor, they had no direct economic stake in their employer's sales and no control over its marketing activity.

Calder regarded both

the president/editor and the author as “employees,” and stated: “[Defendants] are correct that their contacts with California are not to be judged according to their employer’s activities there. On the other hand, their status as employees does not somehow insulate them from jurisdiction. Each defendant’s contacts with the forum State must be assessed individually. [Citation.]” (Citation omitted.)

The defendants characterized their situation as that of a hypothetical welder employed outside California who works on a boiler which later explodes in California. They argued that the welder should not be liable because he has no control over and derives no benefit from his employer’s sales. The Supreme Court rejected the argument, reminding defendants they were not charged with “mere untargeted negligence,” but with intentional and allegedly tortious activity expressly aimed at California. Moreover, they “knew that the brunt of that injury would be felt by respondent in [California]” where the plaintiff lived and worked. (Citation omitted.) Thus, the court concluded the defendants were “primary participants in an alleged wrongdoing intentionally directed at a California resident, and jurisdiction over them is proper on that basis.” (Citation omitted.)

In *Keeton v. Hustler Magazine,*

Inc. (1984) 465 U.S. 770 [79 L.Ed.2d 790, 104 S.Ct. 1473], decided the same day, the Supreme Court was even more emphatic in its rejection of automatic jurisdictional immunity for corporate agents. “In addition to *Hustler Magazine, Inc.*, Larry Flint [sic], the publisher, editor, and owner of the magazine, and L.F.P., Inc., Hustler’s holding company, were named as defendants in] the District Court. It does not, of course, follow from the fact that jurisdiction may be asserted over *Hustler Magazine, Inc.*, that jurisdiction may also be asserted over either of the other defendants. In *Calder v. Jones*, . . . , we today reject the suggestion that employees who act in their official capacity are somehow shielded from suit in their individual capacity. But jurisdiction over an employee does not automatically follow from jurisdiction over the corporation which employs him [Citations.] Each defendant’s contacts with the forum State must be assessed individually. [Citation.]” (*Id.*, at p. 782, fn. 13 [79 L.Ed.2d at p. 802].) Since the lower court found that jurisdiction could not be obtained over *Hustler Magazine, Inc.*, it did not address the propriety of jurisdiction over the other defendants.

. . .

Whatever the purpose and function of the fiduciary shield doctrine, California’s long-arm statute (Code Civ. Proc.,

§ 410.10) expresses no intent to barricade transient tortfeasors from liability for their fraudulent conduct, and jurisdiction must be determined on the individual facts. Appellant's complaint and declaration allege that Messinger and Carow perpetrated a fraud aimed at her in California. It is conceded that at some point they each made personal contact with her and allegedly knowingly and intentionally misrepresented facts that induced her to execute agreements and transfer securities in California. Moreover, they knew that "the brunt of that injury" would be felt by appellant "in the State in which she lives and works. . . ." (Citation omitted.) We have already determined that aside from their status as corporate fiduciaries, minimum contacts have been established. We think that given such facts, the analysis by the United States Supreme Court in *Calder* is appropriate here where the defendants were not mere employees, but, at least in the case of Messinger and Carow were the primary participants in negotiating and executing the buy/sell and employment agreements with appellant.

The essence of *Calder* is that intentional tortfeasors should be prepared to defend themselves in any jurisdiction where they direct their alleged tortious activity. . . .

(*Taylor-Rush v. Multitech Corp.* (1990) 217 Cal.App.3d 103, 116-118 [bold emphasis added].)

The 1AC alleges:

38. The Encroachment is substandard, structurally unstable, and does not comply with applicable law including building codes.

. .

42. The Encroachment is degrading and failing, and, as a result, poses a significant risk to the Subject Property which is downhill therefrom.

(1AC, ¶¶ 38, 42.)

In this regard, Plaintiffs' claim arises out of Defendant Barr's contact with California. The Court finds that Defendant Barr has sufficient minimum contacts with California by virtue of the work he performed relating to a parcel of land in California, such that he

should have anticipated being sued in California for claims relating to that specific work.

Defendant Barr's

argument that Plaintiff's injury was caused by the work of others which Barr did not control goes to the merits of his defense. It is possible that such argument may support a dispositive motion in the future, but for purposes of personal jurisdiction, the evidence indicates that he purposely availed himself of forum benefits.

The Court now considers whether the exercise of jurisdiction over Barr would be fair and reasonable:

In determining whether the exercise of jurisdiction would be fair and reasonable, so as to satisfy the third requirement for the exercise of specific personal jurisdiction, a court must consider (1) the burden on the defendant of defending an action in the forum, (2) the forum state's interest in adjudicating the dispute, (3) the plaintiff's interest in obtaining relief, (4) "the interstate [or international] judicial system's interest in obtaining the most efficient resolution of controversies," and (5) the states' or nations' shared interest "in furthering fundamental substantive social policies." (Asahi, supra, 480 U.S. at p. 113; see id. at p. 115.) "These considerations sometimes serve to establish the reasonableness of jurisdiction upon a lesser showing of minimum contacts than would otherwise be required. [Citations.] On the other hand, where a defendant who purposefully has directed his activities at forum residents seeks to defeat jurisdiction, he must present a compelling case that the presence of some other considerations would render jurisdiction unreasonable." n6 (Burger King, supra, 471 U.S. at p. 477.)

(Anglo Irish Bank Corp., PLC v. Superior Court
(2008) 165 Cal.App.4th 969, 979-80 [bold emphasis added].)

1. Re:

The burden on the defendant of defending an action in the forum.

Barr would not have to personally appear at hearings, and the Court notes that Wolfe & Wyman LLP represents both specially appearing Defendant Barr and Defendant/Cross-Defendant Bay City Technology, Inc. As such, Barr's counsel is likely able to make appearances on his behalf without substantial additional cost. Moreover, to the extent that his involvement in the matters in suit is a result of acts in the course and scope of his

employment, Barr may be entitled to indemnification for his legal expenses pursuant to Labor Code section 2802.

As for discovery, it appears Barr will need to respond in some manner, as he is presumably a main witness (or the main witness) on behalf of Bay City. Further, Barr's deposition would have to occur in the state of residence whether he is a party to this action or not, as this Court does not have the authority to compel an out-of-state resident to appear for a deposition in California. (Toyota Motor Corp. v. Superior Court (2011) 197 Cal.App.4th 1107, 1113-14.)

The Court finds there is no substantial additional burden upon Barr by virtue of being required to participate in his action as a named party, as opposed to him being a witness on behalf of his employer.

This factor favors the reasonableness of exercise of personal jurisdiction over Barr.

2. Re:
the forum state's interest in adjudicating the dispute.

California has a substantial interest in adjudicating disputes concerning its resident's contracts pertaining to real estate located in California.

This factor favors the reasonableness of exercise of personal jurisdiction over Barr.

3. Re:
the plaintiff's interest in obtaining relief.

Plaintiffs have an interest in obtaining relief regarding a dispute pertaining to real estate owned in California.

This factor favors the reasonableness of exercise of personal jurisdiction over Barr.

4. Re:
“ ‘the interstate [or international] judicial system's interest in obtaining the

most efficient resolution of controversies,' “

Barr lives in

North Carolina. (Barr Decl., ¶ 4.) North Carolina does not appear to have an interest in efficient resolution of controversies regarding services pertaining to real estate improvements in California.

This

factor favors the reasonableness of exercise of personal jurisdiction over Barr.

5. Re:

the states' or nations' shared interest “ ‘in furthering fundamental substantive social policies.’ “

The states'

shared interest in furthering fundamental substantive social policies is served by allowing a California court to adjudicate a dispute regarding services pertaining to real estate improvements in California.

This

factor favors the reasonableness of exercise of personal jurisdiction over Barr.

Because

all factors favor the reasonableness of exercise of personal jurisdiction over Barr, and because the Court has found that Defendant Barr has sufficient minimum contacts with California, the Court may properly exercise personal jurisdiction over Barr.

The

motion to quash is DENIED. Defendant is to respond to the First Amended Complaint within 30 days.